TBIC INVESTMENTS (PVT) LTD
versus
MINISTER OF LANDS AGRICULTURE AND WATER FISHERIES AND RURAL DEVELOPMENT
and
RELEASE POWER INVESTMENTS (PRIVATE) LIMITED
and
ONIYAS ZIDANDA GUMBO
and
KENNEDY GODWIN MANGENJE
and
REGISTRAR OF DEEDS
and
ZIMBABWE LAND COMMISSION

HIGH COURT OF ZIMBABWE
MUSITHU J

HARARE, 3 November 2025 & 26 June 2026

Opposed application-Reinstatement of a matter dismissed for being deemed abandoned

F. Mahere, for the applicant
R. Mabwe, for the 2nd and 3rd respondents
A.M. Murinye, for the 4th respondents

MUSITHU J:

[1] This is an application for the reinstatement of a matter in terms of paragraph 5.1 of Practice Direction No. 1 of 2025. The matter sought to be reinstated is an application for a *declaratur* and consequential relief instituted by the applicant against the same respondents under case number HCH 964/25.That application was deemed abandoned and dismissed through a case management order of this court on 10 June 2025.

Factual background and the applicant's case

[2] The factual background as related to by the applicant was as follows. The applicant instituted proceedings for *a declaratur* under case number HCH964/25 on 3 March 2025. The second and third respondents filed opposing papers on 19 March 2025, and the first respondent on 11 April 2025. The fifth and sixth respondents did not file opposing papers.

[3] While the application in HCH 964/25 was pending, on 3 March 2025 and under case number HCH 1007/25, the applicant filed an application for consolidation of the matter under

HCH964/25 with two other matters being case number HCH 4740/24 and HCH 4503/21 which were already pending before the court and involving the same land in dispute. The land in dispute was identified as the Remaining Extent of Stuhm situated in the district of Goromonzi in Mashonaland East Province measuring 583, 1360 hectares (hereinafter referred to as the land).

[4] The applicant claimed that it focused on the application for consolidation under HCH 1007/25, as the matter under HCH 964/25 could not proceed before the chamber application for consolidation was determined. As the applicant was prosecuting the matter for consolidation, it received on 2 June 2025, a letter from the registrar advising that in terms of paragraph 3.1 of Practice Direction 1 of 2025, the matter had been deemed as potentially abandoned or inactive, and as such it was being placed before a judge for disposition within five days of the notice.

[5] After receiving the letter of 2 June 2025, the applicant filed its answering affidavit to the respondents' notices of opposition on 10 June 2025 at 09:53am. The registrar updated the status of the matter and approved it to proceed to the next stage. Despite accepting the applicant's answering affidavit in HCH 964/25 and having updated the status of the matter, the registrar proceeded to place the matter before a judge on 10 June 2025 at 10:11am for the matter to be dismissed for having been deemed abandoned. The matter was thereafter dismissed after being deemed abandoned.

[6] The applicant's legal practitioners immediately wrote to the registrar querying that decision and requesting that the query be placed before the judge as the matter was improperly deemed abandoned and dismissed. As at the time of filing the present application, the applicant had not received a response to its query. The applicant contended that the matter was improperly deemed abandoned and dismissed since it was still pursuing the consolidation of the matter under HCH 964/25 with other related matters.

[7] The applicant averred that the matter under HCH 964/25 carried prospects of success and it was only proper that the parties be heard on the merits. The first respondent had decided to restore the farm in dispute to the former indigenous owners, being the second and third respondents. The applicant's challenge to the decision of the first respondent was that the applicant was the rightful beneficiary of the first respondent's decision to restore the farm as the applicant was the former indigenous owner having purchased the property from the previous owner. The applicant had proof of such purchase in the form of an agreement of sale, and having occupied the property before it was compulsorily acquired by the State.

[8] The applicant further averred that the second and third respondents had no proof of such purchase and the decision by the first respondent to declare them as former indigenous owners was unreasonable. The applicant contended that although the fourth respondent had an offer letter for the same farm, such offer letter did not override the decision of the first respondent to restore the land to its former indigenous owner or former purchaser. The applicant averred that it had shown good cause for the reinstatement of the said matter.

[9] The application was only opposed by the second and third respondents who filed opposing papers. The other respondents did not oppose the application.

Second and third respondents' case

[10] The opposing affidavit was deposed to by the third respondent in his capacity as a director of the second respondent and on his own behalf. The affidavit raised the following preliminary points. The first was that the applicant adopted a wrong procedure. The substance of the application was an attack on the decision of the registrar to deem the matter as abandoned and dismissed. The applicant's complaint was that the dismissal of the matter was irregular. What the applicant sought was a review of the decision of the registrar as opposed to a reinstatement of the matter.

[11] The second point was that the application was defective because of the applicant's failure to attach the application which it wanted reinstated. Although the application before the court was one for reinstatement and not the *declaratur* application, the applicant was required to present a good and sufficient cause for reinstatement. It was imperative for the court to peep into the *declaratur* application to determine if it had merit.

[12] The third point was that the matter sought to be reinstated was *res judicata*, which was an absolute bar to the proceedings under HCH964/25. This was so because the parties had litigated the same subject matter all the way to the Supreme Court. The result of that litigation was the Supreme Court judgment under SC13/18. An attempt was also made to progress the matter to the Constitutional Court, which also determined the matter under CCZ15/20. The applicant was attempting to obtain the same redress which the Supreme Court and the Constitutional Court had resolved.

[13] The apex court had determined that the applicant obtained defective title from the previous owner and for that reason, its claim was a non event. The title deed sought to be relied upon by the applicant as the source of his claim for rights in the farm was procured through fraud and as such no rights could flow from it.

[14] As regards the merits of the application, the second and third respondents disputed the applicant's explanation for the inaction which led to the dismissal of the matter for want of prosecution. They averred that no reasonable explanation had been tendered on why the applicant failed to take the necessary action when it was served with the registrar's letter of 2 June 2025, advising that the matter would be placed before a judge for disposition within five days.

[15] The second and third respondents further averred that the title deed which allegedly formed the basis of the applicant's claim was found to have been acquired fraudulently and was declared null and void under SC 13/2018. The decision of the Supreme Court in non-constitutional matters was final and binding on all the parties. No inferior court had the power to alter that decision.

Submissions on the preliminary point

Whether the application was properly before the court

[16] Ms *Mabwe* for the second and third respondents submitted that there was no proper application before the court because the application was fatally defective for want of compliance with rules of court. A party approaching the court for the reinstatement of a matter in terms of paragraph 5 of the practice direction had to demonstrate that there was good cause to do so. The court did not have to look to the face of the application in determining the nature of the application before it. It looked at the content of the founding affidavit.

[17] It was further submitted that in paragraph 18 of the founding affidavit, the applicant's case was that an error was made in deeming the matter as abandoned when the applicant had filed an answering affidavit in the very same matter. This position was buttressed by a letter of 10 June 2025 addressed to the clerk of the honourable ZHOU J by the applicant's legal practitioners in which they insisted that the order dismissing the matter as having been abandoned was granted in error.

[18] Ms *Mabwe* further submitted that in the face of all these averments, it was clear that the application before the court was one for review and not for reinstatement of a matter. The applicant needed to apply for condonation for non-compliance with the rules of court. The court was referred to the case of *Sergeant Mhandu & Anor v The Chairman of the Police Service Commission & 2 Ors*[1], where it was held that the accepted position of the law was

[1] SC 63/18

that an applicant who had infringed rules of court must seek to be condoned or pardoned for non-compliance first before applying for the reinstatement of their case.[2]

[19] It was further submitted that where no condonation was sought, the attitude of such an applicant would be construed as tantamount to asserting that the relief was there for the taking. The effect of not seeking condonation was to make an application fatally defective.

[20] In her reply, Ms *Mahere* for the applicant submitted that the application was competent if regard was had to the rules of court. Counsel also referred to paragraph 15 of the founding affidavit where the applicant emphasised the point that the matter was dismissed after being incorrectly deemed to be abandoned. It was not the registrar who made the decision but the judge. The letter from the registrar only communicated the position that the matter was deemed as potentially abandoned and inactive.

[21] Ms *Mahere* also referred to the letter of 7 July 2025 from the registrar which stated that the applicant's letter of 10 June 2025 had been placed before the honourable ZHOU J who directed that the applicant must proceed in terms of Practice Direction 1 of 2025. It was the judge who made the decision and not the registrar.

Analysis

[22] The second and third respondents' argument as I understood it was that the application was deficient in both form and substance. It was deficient in form because it was not clear from a reading of the affidavit what it was that the applicant was approaching the court for. It was deficient in substance because the applicant pleaded a case for the review of the registrar's decision, but in so doing it did not comply with the rules of court concerning applications of that nature.

[23] The respondents' complaint is understandable. The applicant's founding affidavit was poorly structured and lacked the clarity and precision expected in motion proceedings. On its cover, the application is described as one for *"reinstatement of an application for declarator and 'consequintial' relief in terms of paragraph 5.1 of practice directive number 1 of 2025"*. That narration was not repeated anywhere in the founding affidavit. Paragraph 1 of the founding affidavit introduced the deponent to the founding affidavit as well as summarising the nature of his authority to depose to the affidavit. Paragraphs 2 to 8 introduced the parties to the application and their respective addresses for service.

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[2] See also *Zimslate Quartize (Pvt) Ltd & Others v Central African Building Society* SC34/17

[24] Instead of setting out, at the outset, the nature of the application, the legal basis upon which it was brought and the relief sought, the affidavit proceeded as follows in the ensuing two paragraphs:

> "9. I wish to incorporate the contents of the record under HCH 964/2025 as if specifically pleaded herein, for the avoidance of repetition.
> 10. As the record under HCH964/25 will show, the applicant instituted proceedings for a declarator under case number HCH964/25 ON 3 March 2025. The 2nd and 3rd respondents then filed a notice of opposition on 19 March 2025 and the 1st respondent thereafter filed his notice of opposition on 11 April 2025. The 5th and 6th respondents have not filed any opposing papers.
> 11. However pending the application under HCH964/25 the applicant on 3 March 2025 under case number HCH1007/25 then filed an application for consolidation of the matter under HCH964/25 with two other matters being case number……."

[25] The affidavit proceeded to narrate how the registrar served the applicant with a notification letter on 2 June 2025, right up to the time the matter in HCH954/25 was deemed to be abandoned and dismissed. The whole affidavit was a narration of events that took place culminating in the decision to dismiss the matter after it was deemed to be abandoned, as well as the prospects of success in the application for the *declaratur* under HCH954/25. It was only in the draft order that the applicant stated that it was seeking an order that the application for a *declaratur* and consequential relief under HCH964/25 be reinstated.

[26] The applicant's founding affidavit went to great length to impugn the irregular manner in which the registrar had proceeded in referring the matter in HCH954/25 to a judge, and the subsequent dismissal of the matter after it was deemed to be abandoned, in the face of an answering affidavit that had since been filed in response to the registrar's notice of 2 June 2025. That having been said, still the affidavit did not tell what application was before the court. The significance of stating the nature of the application and the provisions of the law under which it was made was highlighted in *Bushu v Grain Marketing Board & 2 Ors*[3] as follows:

> "I deal with the inadequacies in the application hereunder. Firstly, the application does not indicate the provisions of the law under which it is made. I will accept that form 29 of the High Court rules does not specifically provide that the applicant relying on a provision of the law should cite the rule under which the application is made. However, in practice, any astute legal practitioner making an application in terms of a statutory provision including a rule of court is expected to indicate the rule or provision concerned. The need to cite the relevant provision of the law under which the application is made, where applicable of course, cannot be overemphasized. The citation of the correct and relevant provision attunes the court to its jurisdiction and the judge or court as the case may be immediately opens up to the provision and if need be researches on the provision if it is not one that immediately comes to mind."

[3] HH 326/17 at p 3

[27] I associate myself with the above dictum. The rules of court do not require a litigant to cite in their founding affidavit, the relevant provisions of the law in terms of which they relied in motivating their application. For that reason, the court would have condoned the applicant's failure to recite the provision of the law in terms of which the application was made, had it been the only omission. However, the defect in the present application was considerably more fundamental. The founding affidavit failed to articulate the very cause of action upon which the application was premised.

[28] Counsel for the applicant pointed to the cover of the notice of application as clearly demonstrating the nature of the application before the court. However, in motion proceedings, it is the affidavits that save as the pleadings. A litigant's case is determined by reference to the affidavits placed before the court, which set out the facts, cause of action and the evidence. In *Ahmed v Docking Station Safaris (Pvt) Ltd t/a CC Sales*[4] the court articulated the position of the law as follows:

> "It is trite that an application stands or falls on its founding affidavit. (See *Fuyana v Moyo* SC 54-06, *Muchini v Adams & Ors* SC 47-13 and *Austerlands (Pvt) v Trade and Investment Bank Ltd & Ors* SC 80-06). In cases where the headings on the cover of an application tell one thing and the contents of the founding affidavits tell another, the nature of the application that is before the court is determined by the contents of the founding affidavit and not the headings on the cover of the application." (Underlining for emphasis)

[29] The views in the authority above are apposite to the present matter. The nature of the application before the court must be determined by reference to the founding affidavit, and not what is inscribed on the cover of the application. As I have already stated, the court would have overlooked the failure to recite in the founding affidavit, the provision of the law under which the application was launched, but in the present application, the nature of the infraction went beyond that. The founding affidavit did not even state what application was before the court. The court was required to sift through other related applications including the application under HCH954/25 to decode for itself the nature of the application before it and the relief being sought. That omission was fatal. It is not the court which must motivate a litigant's case. It is the litigant itself.

[30] For the above reasons, the court determines that there was no proper application before court. The applicant's failure to identify in its founding affidavit the nature of the application and the legal basis upon which it was brought was not merely a matter of inelegant drafting. It went to the foundation of the applicant's case. The significance of properly pleading a

[4] SC 70/18 at p 3 of the judgment

litigant's case in an affidavit does not need any reminding. It is the hallmark of motion proceedings. Affidavits serve as pleadings in motion proceedings. The cause of action must be set out with sufficient clarity so as to leave the court in no doubt about the exact nature of the applicant's case. It is not the duty of the court to formulate, reconstruct or plead a case on behalf of a litigant. The founding affidavit must contain all the material facts necessary to sustain the relief sought. There being no proper application before the court, it became unnecessary for the court to consider the remaining preliminary points and the merits of the case.

Costs of suit

[31] The general rule is that costs follow the event. I have no reason to deny the second and third respondents their costs of suit as the successful parties.

Resultantly, it is ordered that:

1. The application is hereby struck off the roll for being improperly before the court.
2. The applicant shall bear the second and third respondents' costs of suit on the ordinary scale.

MUSITHU J: ……

Chambati Mataka & Makonese Attorneys At Law, legal practitioners for the applicant
Civil Division of the Attorney General, legal practitioners for the 1st respondent
Tabana & Marwa, legal practitioners for the 2nd and 3rd respondents
Moyo & Jera, legal practitioners for the 4th respondent